Ref. Ares(2024)1946903 - 13/03/2024

Proposal for the REGULATION OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL on the welfare of dogs and cats and their traceability

Statement given by Finnish Centre for Animal Welfare: Tiina Kauppinen and Satu Raussi, elaintieto.fi

The commission's legislative proposal contains several worthwhile points that promote animal welfare. We would like to draw attention to the following points.

Scope of application

According to the proposal, requirements related to animal welfare would be applied to dog and cat breeders, pet stores and rescue shelters that hand over animals to new homes. Traceability provisions would apply to all dogs and cats offered for sale on the internal market. According to Article 4 of the draft regulation, the regulation would not be applied if the breeder has no more than three breeding bitches and if no more than two litters are born per year. The regulation would also not apply to shelters with a maximum of ten dogs or twenty cats.

The disproportion between the maximum number of cats and dogs raises the question of whether the value of a cat as a pet is considered to be lower than that of a dog. In part of the legislative proposal, cats and dogs are equated directly to each other (for example, the same minimum amount of space per cat and dog in Annex 1), but in terms of the scope of application, the number of cats in the shelter should be twice the number of dogs.

Cats typically end up in shelters more often than dogs, but care and stimulation to ensure good welfare state of a cat also require time and effort. It would be justified to apply the regulation to shelters with a minimum number of ten cats, similarly, to shelters for ten dogs. The regulation could be applied even to smaller shelters for found animals, where there are the same number of dogs or cats as in the premises of the breeders to whom the obligation applies, i.e., at least four adult animals. This would also be more in line with the obligation of pet shops (more than three dogs or six cats).

Requirements for keeping and raising dogs and cats

According to Article 6, parents and offspring or grandparents and offspring should not be mated. Mating of siblings should also be prohibited to prevent excessive inbreeding.

According to the proposal, breeding strategies should not produce genotypes and phenotypes that adversely affect welfare of dogs and cats or their offspring. Reproduction should also be

Satu Raussi
+358 50 415 6570
satu.raussi@luke.fi

Tiina Kauppinen
+358 44 3001 295
tiina.kauppinen@luke.fi

prohibited if the animal is unable to reproduce naturally, as the inability to reproduce naturally is a risk to welfare of both the mother and the puppies.

According to the proposal, the aforementioned point would not prevent the selection and breeding of short-nosed dogs and cats, provided that selection or breeding programs minimize the negative effects of short-nosed traits on welfare. The proposal should also take into account other characteristics that weaken the welfare of animals than short snouts and emphasize that the negative effects on welfare caused by them should also be minimized. Such characteristics include, for example, too small skull, strongly protruding eyes, disproportionately large, loose and wrinkled skin, susceptibility to back and joint injuries, etc.

According to Article 10, a veterinarian must visit the premises under the responsibility of the operator or the person responsible for sheltering animals at least once a year. Here too, the difference in the number of dogs and cats in the places where the obligation applies is considerable.

Article 13 would require that only a veterinarian could euthanize a cat or a dog. In Finland, for example, a hunting dog is sometimes euthanized by the owner of the dog. Euthanizing at home can be a better option than transporting the animal to be euthanized by a veterinarian, possibly a long distance away, especially if the animal is sick or otherwise in poor condition. It would be good if killing cats and dogs by shooting them in the head would continue to be allowed, provided that the person killing them is a qualified person and has a hunting license and a firearm suitable for the purpose. It would also be good to retain the right to euthanize newborn (less than 3 days old) puppies by a qualified person other than a veterinarian with a strong blow to the head in cases where the puppy is seriously ill or injured and transporting it to be euthanized by a veterinarian would cause the puppy extra suffering and harm to its welfare.

According to Article 13, adult female dogs and cats that are no longer being bred should not be euthanized or abandoned. Abandoning an animal is unequivocally condemnable from a welfare point of view, but the question of the right to kill an animal is not directly related to the animal welfare but is ethical in nature. Production animals are killed and removed from production when it is no longer profitable to reproduce them. However, cats and dogs are not bred for food production and their status as pets differ from those of reared for production purposes. Killing a healthy bitch cannot be considered ethically justified from the point of view of the intrinsic value of the animal nor the respect. As a general rule, efforts should be made to place breeding bitches that are no longer producing puppies in a new home, unless there is a veterinary or other animal welfare related reason for killing them.

Article 14 would require that a cat or dog should not be kept tethered for more than an hour. The article does not propose an exception to keeping dogs on a running wire or other long chain, where the animal's actual movement space would exceed the minimum outdoor space requirements proposed in Appendix 1.

Satu Raussi
+358 50 415 6570
satu.raussi@luke.fi

Tiina Kauppinen
+358 44 3001 295
tiina.kauppinen@luke.fi

In a scientific report published in September 2023, the European Food Safety Authority EFSA has recommended that dogs and cats (raised for commercial purposes) should not be kept permanently in boxes, cages, or crates. EFSA points out that keeping cats and dogs in cages or similar small spaces leads to welfare problems such as abnormal behavior and stress. Instead of being tethered, dogs kept outside should be provided with a shelter large enough to allow the dogs to move around and behave appropriately.

Traceability of dogs and cats

Article 17 requires identification and registration for all cats and dogs that are handed over (at some point in their life). The identification and registration requirement are necessary to safeguard welfare of both dogs and cats.

According to the proposal, only a veterinarian or an assistant acting in his/her charge could insert the identification mark, i.e. the microchip. In Finland, a microchip can be inserted not only by a veterinarian, but also by a qualified person who has the appropriate expertise to perform the procedure. In terms of animal welfare, it would be good for this to continue. To increase the appreciation of cats and ensure their welfare, it would be particularly important that all cats be microchipped and registered, and the procedure should be as easy and inexpensive as possible for the owner of the animal, so that it will certainly be done. Demonstrated competence and skills to perform the microchipping procedure should be sufficient, in which case it could continue to be done by someone other than a veterinarian or a person under his direct supervision.

Appendix 1

Feeding, point 1.1: The operator must comply with the following feeding frequencies: a) adult cats and dogs must be fed twice a day > this could be changed to adult cats and dogs must be fed AT LEAST twice a day.

Animal facilities, point 2.1 Temperature: Operators must ensure that the temperature is […] c) 22-28°C in the nesting areas during the first 10 days of the puppies' life; d) 18–27°C in the nesting areas for the first 21 days of the kittens' life. The temperature ranges must be adjusted accordingly for animals belonging to the short-nosed breed/type and for animals with exceptional coats (hairless or thick-coated breeds).

If section 2.1 is interpreted so that the given temperature range must always be kept within, too high a temperature can cause stress to thick-furred mother dogs kept outside. Regarding these, the temperature should have the possibility to deviate downwards if the welfare of the mother and puppies requires it. Alternatively, special attention should be paid to the fact that the mother dog has the actual opportunity to leave the puppies often enough and for long

Satu Raussi
+358 50 415 6570
satu.raussi@luke.fi

Tiina Kauppinen
+358 44 3001 295
tiina.kauppinen@luke.fi

enough periods of time, which could, however, weaken the welfare of the puppies. Attention is also drawn to the requirement that a lower minimum temperature would be sufficient for kittens than for puppies. Kittens are usually smaller than puppies and cats are more sensitive to cold than dogs, which is why it would be good to set a higher minimum temperature requirement for kittens.

Animal facilities, section 2.2 Lighting, 2.2.4: Animals must have the opportunity to be in the dark for at least eight hours a day. In Finnish conditions, dogs kept outside do not have the opportunity for an eight-hour dark period every day, unless the doghouse is interpreted as offering this.

Animal premises, section 2.3 Space requirements, 2.3.1: Minimum space requirements for dogs and cats (the entire area available to the animals, including, where applicable, indoor spaces referred to in Article 11(5) and enclosed outdoor spaces). The space requirements according to the proposal differ somewhat from the minimum space requirements currently regulated nationally in Finland. From the point of view of animal welfare, it would be good to keep in force the stricter national requirements.

Satu Raussi
+358 50 415 6570
satu.raussi@luke.fi

Tiina Kauppinen
+358 44 3001 295
tiina.kauppinen@luke.fi